

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 24-14

AIRBOSS DEFENSE GROUP, LLC,

COMPLAINANT,

v.

FEDEX TRADE NETWORKS TRANSPORT & BROKERAGE, INC.,
MEDITERRANEAN SHIPPING COMPANY S.A. and MEDITERRANEAN
SHIPPING COMPANY (USA) INC., as agent for Mediterranean Shipping Company
S.A., and TOTAL TERMINALS INTERNATIONAL,

RESPONDENTS.

**DECLARATION OF CAMERON W. ROBERTS IN SUPPORT OF AIRBOSS
DEFENSE GROUPS RESPONSE IN OPPOSITION TO FEDEX TRADE
NETWORKS TRANSPORT & BROKERAGE, INC.'s MOTION TO DISMISS,
OR IN THE ALTERNATIVE, MOTION FOR SUMMARY DECISION**

I, Cameron W. Roberts, declare:

1. I am an attorney at Roberts & Kehagiaras LLP ("R&K") and I am counsel for complainant Airboss Defense Group LLC ("ADG") in the above action.
2. I am a member in good standing of the State Bars of California and Washington and I have filed an appearance in this action.
3. As a member of a team of attorneys representing ADG in various actions in different parts of the country, I have personal knowledge of the facts I state in this declaration and I have personal knowledge of the proceedings in this above action.

4. As an attorney of ADG, I have personal knowledge that FTN filed a second lawsuit on August 15, 2023, in Maryland to enforce the Disputed Settlement Agreement, *FedEx Trade Networks Transport & Brokerage, Inc. v. Airboss Defense Group, LLC*, case number 1:23-cv-02232-JMC (the “Second Maryland Lawsuit”). Attached as Exhibit “A” is a true and correct copy of FTN’s complaint in the Second Maryland Lawsuit, ECF no. 01.

5. As an attorney of ADG, I have personal knowledge that ADG filed an answer in the Second Maryland Lawsuit alleging that the settlement agreement with FTN is unenforceable. In that answer, ADG raised affirmative defenses, including FTN’s violations of the Shipping Act. Attached as Exhibit “B” is true and correct copy of ADG’s answer in the Second Maryland Lawsuit, ECF no. 17.

6. Attached as Exhibit “C” is true and correct copy of *Santa Fe Discount Cruise Parking, Inc., et al. v. The Board of Trustees of the Galveston Wharves, et al.*, FMC No. 14-06 (ALJ, November 21, 2014), which I downloaded from <https://www2.fmc.gov/readingroom/proceeding/14-06/>. In that copy, for the Commission’s ease of reference, I have highlighted the word “tariff” in yellow.

I declare under penalty of perjury under the laws of the United States that the above is true and correct.

Dated: July 12, 2024

/s/ Cameron W. Roberts

CERTIFICATE OF SERVICE

I certify that on the 12th day of July 2024, I served the above **DECLARATION OF CAMERON W. ROBERTS IN SUPPORT OF AIRBOSS DEFENSE GROUPS RESPONSE IN OPPOSITION TO FEDEX TRADE NETWORKS TRANSPORT & BROKERAGE, INC.'s MOTION TO DISMISS, OR IN THE ALTERNATIVE, MOTION FOR SUMMARY DECISION** on the parties listed below by email.

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Ana Cruz